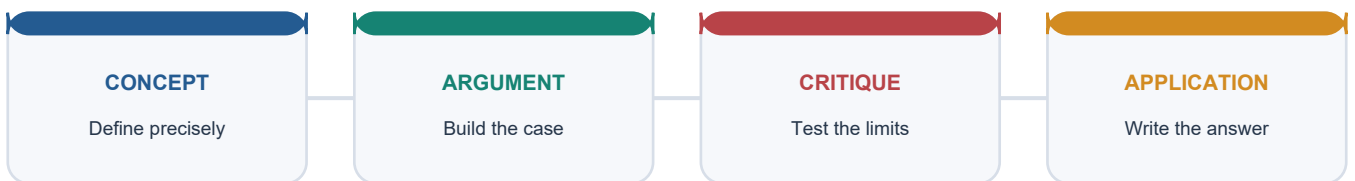


## COMPLETE LEARNING SESSION

# Governor, Chief Minister and State Council - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

### LEARNING PATH



*Deterministic fallback visual: move from precise concepts through argument and critique to exam application.*

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Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

# Governor, Chief Minister and State Council - Solved Practice Workbook

## BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - answer sequence ABCD x 8

Each option is explained independently. The Examiner trap identifies the specific close-option error.

### MCQ 1.

Article 153 after the Seventh Amendment permits which arrangement?

- A. One person may be Governor of two or more States. B. Two Governors may exercise equal authority in one State. C. A Chief Minister may assume gubernatorial office automatically. D. A common Governor merges the participating State executives.

**Answer: A.**

**Option A explanation:** This states the proviso added to Article 153; each State office remains distinct.

**Option B explanation:** Article 153 contemplates one Governor for each State, not co-equal dual incumbency.

**Option C explanation:** No constitutional succession rule converts a Chief Minister into Governor.

**Option D explanation:** A common incumbent does not merge States, legislatures or Councils of Ministers.

**Examiner trap 1:** Common incumbent is not constitutional merger.

### MCQ 2.

How is a State Governor constitutionally selected?

- A. By an electoral college of State legislators. B. By the President through a warrant under hand and seal. C. By the Chief Minister subject to High Court confirmation. D. By the Legislative Assembly through proportional representation.

**Answer: B.**

**Option A explanation:** No gubernatorial electoral college exists; that logic belongs to other offices.

**Option B explanation:** Article 155 supplies presidential appointment by warrant under hand and seal.

**Option C explanation:** The Chief Minister has no constitutional nomination-and-confirmation route.

**Option D explanation:** The Assembly neither elects nor confirms the Governor.

**Examiner trap 2:** Do not import the President's election method into Article 155.

### MCQ 3.

Which pair exhausts the constitutional qualifications in Article 157?

A. Residence in the State and a law degree. B. Thirty years of age and legislative membership. C. Indian citizenship and completed age of thirty-five years. D. Eminence in public life and political non-partisanship.

**Answer: C.**

**Option A explanation:** Residence and education are not Article 157 qualifications.

**Option B explanation:** The age is thirty-five and legislative membership is incompatible with office.

**Option C explanation:** Article 157 contains precisely citizenship and completed age thirty-five.

**Option D explanation:** These are reform preferences, not constitutional eligibility conditions.

**Examiner trap 3:** Sarkaria criteria must not be converted into Article 157 text.

### MCQ 4.

Who ordinarily administers the Governor's oath under Article 159?

A. The President of India. B. The Chief Minister. C. The Speaker of the Assembly. D. The Chief Justice of the jurisdictional High Court, or the available senior judge in the Chief Justice's absence.

**Answer: D.**

**Option A explanation:** The President appoints but does not ordinarily administer this oath.

**Option B explanation:** The political executive does not administer the Governor's constitutional oath.

**Option C explanation:** The Assembly Speaker has no Article 159 role.

**Option D explanation:** Article 159 places oath administration in the High Court judiciary.

**Examiner trap 4:** Appointment and oath are performed by different constitutional authorities.

### MCQ 5.

Which statement best reflects Article 156 read with B.P. Singhal (2010)?

A. Five years is subject to presidential pleasure, but removal cannot be arbitrary, capricious, unreasonable or mala fide. B. A Governor has an enforceable five-year tenure unless impeached. C. The State Assembly may remove the Governor by effective majority. D. Every removal is non-justiciable because reasons are never relevant.

**Answer: A.**

**Option A explanation:** This preserves pleasure while adding constitutional non-arbitrariness review.

**Option B explanation:** No Governor impeachment process or guaranteed lease exists.

**Option C explanation:** Article 156 assigns no Assembly removal vote.

**Option D explanation:** A prima facie arbitrariness case may require Union justification.

**Examiner trap 5:** Pleasure is broad tenure power, not a synonym for arbitrariness.

#### MCQ 6.

What did Hargovind Pant v. Dr Raghukul Tilak (1979) decide?

A. A Governor must be an outsider to the State. B. The Governor's office is an independent constitutional office, not employment under the Union for Article 319(d). C. A former SPSC member can never become Governor. D. The Governor is a subordinate employee of the President.

**Answer: B.**

**Option A explanation:** Outsider status is a recommendation, not this case's holding.

**Option B explanation:** The Article 319(d) challenge failed because the office was not Union employment.

**Option C explanation:** The judgment upheld rather than barred the appointment.

**Option D explanation:** Presidential appointment does not create an employer-employee relationship.

**Examiner trap 6:** Use the Article 319(d) context, not a vague independence slogan.

#### MCQ 7.

Which proposition about Article 361 is correct?

A. No civil proceeding may ever be filed for a Governor's personal act. B. Every governmental act done in the Governor's name is immune from review. C. The Governor enjoys personal process protections during office, while the underlying governmental action can still be reviewed. D. Article 361 gives House-speech immunity under Article 194.

**Answer: C.**

**Option A explanation:** Personal civil proceedings may follow the constitutional two-month notice route.

**Option B explanation:** Rameshwar Prasad confirms that personal immunity does not shield the action's validity.

**Option C explanation:** This separates the office-holder's immunity from review of constitutional action.

**Option D explanation:** Article 194 protects legislative members; the Governor is not a House member.

**Examiner trap 7:** Immunity of person is not immunity of decision or supporting material.

#### MCQ 8.

How should Articles 154 and 163 be read together?

A. Article 154 makes every executive decision personally discretionary. B. Article 163 transfers State executive power to the President. C. Article 154 eliminates collective responsibility. D. Formal vesting in the Governor operates through the CM-led Council's advice except in a bounded constitutional field.

**Answer: D.**

**Option A explanation:** Formal vesting cannot be isolated from responsible government.

**Option B explanation:** State executive power is not transferred to the Union executive.

**Option C explanation:** Article 164(2), not Article 154, expressly states collective responsibility.

**Option D explanation:** This is the parliamentary reading affirmed in Shamsher Singh.

**Examiner trap 8:** Formal vesting does not prove personal government.

### MCQ 9.

The central holding of *Shamsher Singh* (1974) for State executive power is that:

- A. The Governor is a constitutional head ordinarily acting on ministerial advice, including in Article 234 appointments.  
B. Article 163 creates unlimited personal discretion. C. The Governor may dismiss any majority-holding ministry. D. Every power expressed in the Governor's name requires personal satisfaction.

**Answer: A.**

**Option A explanation:** The seven-judge ruling rejected broad personal satisfaction and protected cabinet government.

**Option B explanation:** Discretion remains exceptional rather than general.

**Option C explanation:** Assembly confidence constrains pleasure over the ministry.

**Option D explanation:** The case rejects, rather than establishes, universal personal satisfaction.

**Examiner trap 9:** Attach *Shamsher Singh* to advice and its subordinate-judiciary context.

### MCQ 10.

Which is outside a legitimate domain of gubernatorial discretion?

- A. Choosing a credible CM claimant in a genuinely hung Assembly. B. Selecting ministers contrary to the Chief Minister's advice because the Governor prefers another team. C. Sending a reasoned Article 356 report on constitutional breakdown. D. Using a specially worded constitutional responsibility in a named State.

**Answer: B.**

**Option A explanation:** Hung-House selection is a temporary situational necessity followed by floor proof.

**Option B explanation:** Article 164 requires other ministers to be appointed on CM advice.

**Option C explanation:** A reasoned breakdown report is constitutionally recognised, though reviewable.

**Option D explanation:** Special responsibilities remain bounded to their exact texts.

**Examiner trap 10:** Political controversy by itself does not manufacture discretion.

### MCQ 11.

Which statement correctly bounds special gubernatorial responsibilities?

- A. Every Governor has personal law-and-order control. B. Article 371A applies uniformly to all tribal States. C. Articles 371A(1)(b) and 371H(a) create named law-and-order responsibilities; Sixth Schedule functions are provision-specific. D. Special responsibility authorises disregard of the Council in ordinary policy.

**Answer: C.**

**Option A explanation:** Law-and-order individual judgment exists only where a special text supplies it.

**Option B explanation:** Article 371A is Nagaland-specific.

**Option C explanation:** This preserves State-specific constitutional asymmetry without generalisation.

**Option D explanation:** Exceptional responsibility does not convert routine governance into personal rule.

**Examiner trap 11:** Never turn a named-State exception into an all-India gubernatorial power.

### MCQ 12.

In a hung Assembly, the constitutionally safest course is to:

A. Always invite the single largest party regardless of support. B. Wait indefinitely until parties agree unanimously. C. Allow the Governor to count confidence privately and finally. D. Invite a credible claimant on objective support and require a prompt floor test.

**Answer: D.**

**Option A explanation:** No inflexible single-largest-party rule overrides credible coalition support.

**Option B explanation:** Delay can distort political choice and administration.

**Option C explanation:** The Governor facilitates but does not finally decide majority.

**Option D explanation:** Invitation remains provisional until the House supplies democratic proof.

**Examiner trap 12:** Appointment opens the process; the floor test validates the government.

### MCQ 13.

Which case most directly supports a prompt floor test where resignations created objective doubt in 2020 Madhya Pradesh?

A. Shivraj Singh Chouhan v. Speaker, Madhya Pradesh Legislative Assembly. B. Hargovind Pant v. Raghukul Tilak. C. Epuru Sudhakar v. Government of Andhra Pradesh. D. B.P. Singhal v. Union of India.

**Answer: A.**

**Option A explanation:** The Court upheld a prompt test on objective resignation material while leaving the House to decide numbers.

**Option B explanation:** Hargovind Pant concerns Article 319(d) and office status.

**Option C explanation:** Epuru Sudhakar concerns clemency review.

**Option D explanation:** B.P. Singhal concerns gubernatorial removal.

**Examiner trap 13:** Use Shivraj for objective resignation material, not every factional quarrel.

### MCQ 14.

What is the exact warning from Rameshwar Prasad (2006)?

A. The Governor must invite only a pre-poll alliance. B. Anticipated horse-trading cannot replace objective material and House process to justify pre-emptive dissolution. C. Article 356 proclamations are wholly non-justiciable. D. Courts must always restore a dissolved Assembly.

**Answer: B.**

**Option A explanation:** The case did not constitutionalise one invitation order.

**Option B explanation:** The Bihar dissolution was held unconstitutional; speculative future misconduct was insufficient.

**Option C explanation:** The judgment reinforces, not denies, judicial review.

**Option D explanation:** Relief depends on circumstances; the Assembly was not restored after election steps had advanced.

**Examiner trap 14:** Invalidity of dissolution and the eventual remedy are separate questions.

### MCQ 15.

Nabam Rebia (2016) held, in the Arunachal Pradesh context, that the Governor:

A. May dictate the legislative agenda whenever removal of the Speaker is proposed. B. Possesses final authority over Tenth Schedule disqualification. C. Could not unilaterally pre-pone the session and prescribe the Speaker-removal agenda; Article 174 functions are normally advice-bound. D. May dissolve the Assembly without considering ministerial advice.

**Answer: C.**

**Option A explanation:** The impugned intervention was invalidated, not approved.

**Option B explanation:** Disqualification belongs to the Speaker subject to review.

**Option C explanation:** This is the bounded Governor holding; a separate Speaker-removal issue was later referred.

**Option D explanation:** Dissolution does not become an unrestricted personal power.

**Examiner trap 15:** Separate the valid Governor holding from the referred Speaker-removal question.

### MCQ 16.

According to Subhash Desai (2023), a Governor should call a floor test:

A. To identify which faction controls a political party. B. Whenever any group of legislators alleges internal dissatisfaction. C. To decide the validity of a party whip. D. Only on objective material indicating possible loss of House confidence, not factional dissent alone.

**Answer: D.**

**Option A explanation:** Party identity is not for gubernatorial adjudication.

**Option B explanation:** Intra-party discontent alone was held insufficient.

**Option C explanation:** Whip validity follows party and Tenth Schedule processes.

**Option D explanation:** The Court found the Maharashtra call unjustified on the material before the Governor.

**Examiner trap 16:** A floor test verifies House confidence; it does not create the doubt it purports to test.

### MCQ 17.

State of Punjab v. Principal Secretary to the Governor (2023) establishes that:

A. The Governor cannot keep Bills pending indefinitely and, if withholding assent, must follow the return route in Article 200's first proviso. B. A Governor may invalidate a legislative sitting merely by questioning it. C. Every pending Bill receives automatic deemed assent. D. The Court may dictate which Article 200 option the Governor selects.

**Answer: A.**

**Option A explanation:** The judgment required a decision and linked withholding with reconsideration.

**Option B explanation:** The Court upheld the reconvened sittings and rejected this claimed power.

**Option C explanation:** Punjab did not create deemed assent.

**Option D explanation:** It required constitutional action without choosing the merits of the option.

**Examiner trap 17:** Punjab rejects inaction, not the Governor's listed constitutional choices.

**MCQ 18.**

Under the five-judge 2025 Article 143 opinion, Article 200 presents:

A. Four independent options including a free-standing return power. B. Three options: assent; reserve; or withhold and return a non-Money Bill with comments. C. Only assent or reservation. D. A personal pocket veto of indefinite silence.

**Answer: B.**

**Option A explanation:** The first proviso restricts the withholding route rather than adding a fourth option.

**Option B explanation:** Conclusion 165.1 states this three-option structure.

**Option C explanation:** Withholding-return remains constitutionally available for a non-Money Bill.

**Option D explanation:** Prolonged unexplained indefinite inaction may attract limited mandamus.

**Examiner trap 18:** Count the current opinion's routes, not isolated verbs in the bare text.

**MCQ 19.**

How should the April and November 2025 assent decisions be related?

A. The advisory opinion appellate-set aside all relief in the Tamil Nadu case. B. The Tamil Nadu judgment remains the sole general rule on fixed timelines. C. The later advisory opinion expressly called the general timeline/deemed-assent reasoning erroneous, but did not formally overrule or set aside the inter partes relief. D. Both decisions require automatic assent after three months.

**Answer: C.**

**Option A explanation:** Article 143 advice was not an appeal in the Tamil Nadu case.

**Option B explanation:** The later five-judge opinion rejects the fixed-clock rule.

**Option C explanation:** This captures both doctrinal disapproval and procedural relationship.

**Option D explanation:** The opinion rejects rigid timelines and deemed assent.

**Examiner trap 19:** Say 'disapproved the general propositions', not 'formally overruled'.

**MCQ 20.**

After a non-Money Bill reserved under Article 201 is returned and passed again, the President:

A. Must assent because Article 200's repassage rule applies identically. B. Loses power to withhold assent. C. Must obtain a fresh Article 143 opinion. D. Is not constitutionally compelled to assent; Article 201 contains no 'shall not withhold' command.

**Answer: D.**

**Option A explanation:** Article 200's direct-return language cannot be imported into Article 201.

**Option B explanation:** The President retains the constitutional assent/withholding choice.

**Option C explanation:** The 2025 opinion says an Article 143 reference is not mandatory.

**Option D explanation:** This is the textually decisive distinction.

**Examiner trap 20:** The State Houses' six-month reconsideration duty does not bind the President to assent.



**MCQ 21.**

When can an Article 213 ordinance ordinarily be promulgated in a bicameral State?

A. When the Legislative Assembly is not in session or when both Houses are not simultaneously in session, and immediate action is necessary. B. Only when both Houses have been dissolved. C. Whenever the Governor disagrees with pending legislation. D. Only after presidential assent to the ordinance text.

**Answer: A.**

**Option A explanation:** Article 213's bicameral session condition and urgency requirement are stated here.

**Option B explanation:** Dissolution of both Houses is neither required nor generally possible for a continuing Council.

**Option C explanation:** Policy disagreement cannot satisfy constitutional necessity.

**Option D explanation:** Presidential instructions are required only in the three specified proviso situations.

**Examiner trap 21:** The power is unavailable only when both Houses are in session together.

**MCQ 22.**

D.C. Wadhwa v. State of Bihar is best known for holding that:

A. Every ordinance is unconstitutional. B. Routine serial re-promulgation to avoid the legislature is a fraud on the Constitution. C. Ordinances survive permanently after lapse. D. The Governor may legislate on Union List subjects.

**Answer: B.**

**Option A explanation:** The case condemned abuse, not the ordinance institution.

**Option B explanation:** This phrase captures Bihar's repeated bypass of legislative scrutiny.

**Option C explanation:** Lapse does not automatically preserve the ordinance as permanent law.

**Option D explanation:** Legislative competence remains a substantive limit.

**Examiner trap 22:** The vice is repetition as a governing method, not a genuinely urgent first ordinance.

**MCQ 23.**

Krishna Kumar Singh (2017) adds which control to ordinance doctrine?

A. The Governor's satisfaction can never be reviewed. B. Re-promulgation becomes valid after three cycles. C. Laying before the legislature is mandatory, satisfaction is reviewable at constitutional limits, and effects do not automatically endure. D. Every ordinance must first be approved by the High Court.

**Answer: C.**

**Option A explanation:** The seven-judge decision preserves review.

**Option B explanation:** No numerical safe harbour for re-promulgation exists.

**Option C explanation:** These are the central legislative-supremacy holdings.

**Option D explanation:** Judicial pre-clearance is not an Article 213 condition.

**Examiner trap 23:** Do not reduce Krishna Kumar Singh to only the six-week expiry rule.

#### MCQ 24.

Which comparison of Articles 72 and 161 is correct?

A. A Governor may pardon a death sentence whenever the offence lies in the State field. B. A Governor has no clemency power at all in a death-sentence case. C. A Governor may exercise clemency over court-martial punishment arising within the State. D. A Governor cannot pardon a death sentence, but may suspend, remit or commute it within the State field; the President may pardon a death sentence and exercises court-martial clemency.

**Answer: D.**

**Option A explanation:** State-field jurisdiction does not authorise a Governor to pardon a death sentence.

**Option B explanation:** Article 161 still permits suspension, remission or commutation of a death sentence within the State field.

**Option C explanation:** Court-martial clemency is exclusively within Article 72, not Article 161.

**Option D explanation:** This states the Article 72(1)(c)/72(3) distinction and the separate court-martial exclusion accurately.

**Examiner trap 24:** Article 161 uses the word 'pardon' generally, but a Governor cannot pardon a death sentence; do not erase the retained powers to suspend, remit or commute it.

#### MCQ 25.

Maru Ram (1980) treats constitutional clemency as:

A. A power exercised by the appropriate government through binding ministerial advice, not personal mercy. B. A judicial appeal from the conviction. C. An unrestricted personal discretion of the Governor. D. A power exercisable only after legislative approval.

**Answer: A.**

**Option A explanation:** The Court located real decision-making in the responsible government.

**Option B explanation:** Clemency is executive and does not replace appellate adjudication.

**Option C explanation:** The holding rejects personal gubernatorial clemency.

**Option D explanation:** No prior House vote is a constitutional condition.

**Examiner trap 25:** Article 161 orders are governmental decisions in constitutional form.

#### MCQ 26.

Epuru Sudhakar (2006) permits judicial review of clemency for:

A. Any disagreement with the sentence length. B. Mala fides, arbitrariness, non-application of mind, exclusion of relevant material or reliance on irrelevant material. C. A complete rehearing of guilt in every case. D. Only a defect in the Governor's signature.

**Answer: B.**

**Option A explanation:** Courts do not substitute ordinary sentencing preferences.

**Option B explanation:** These recognised defects police constitutional decision quality.

**Option C explanation:** Clemency review is limited rather than a universal retrial.

**Option D explanation:** Authentication is not the exclusive ground of review.

**Examiner trap 26:** Limited review tests decision defects, not the wisdom of mercy as an appeal.

### MCQ 27.

Article 167(c) enables the Governor to require the Chief Minister to:

A. Dismiss an individual minister without Cabinet consideration. B. Disclose Cabinet advice in court. C. Place before the Council a matter decided by a minister but not considered by the Council. D. Transfer State executive power to the Union.

**Answer: C.**

**Option A explanation:** Individual exit operates through CM-led ministerial responsibility.

**Option B explanation:** Article 163(3) protects advice from judicial inquiry.

**Option C explanation:** This 'collectivise' duty reinforces Cabinet responsibility.

**Option D explanation:** Information duties do not alter the federal allocation of power.

**Examiner trap 27:** Article 167 creates an information bridge, not departmental command.

### MCQ 28.

Which statement accurately describes Article 164 responsibility and membership?

A. The Council is responsible to both State Houses equally. B. A non-member minister has one year to enter the legislature. C. Governor pleasure allows dismissal of a majority-holding CM at will. D. The Council is collectively responsible to the Assembly, and a minister ceases after six consecutive months without legislative membership.

**Answer: D.**

**Option A explanation:** The Legislative Council cannot remove the ministry.

**Option B explanation:** The constitutional period is six consecutive months.

**Option C explanation:** Pleasure is structured by confidence and advice.

**Option D explanation:** Both responsibility and the membership limit are correctly paired.

**Examiner trap 28:** The confidence House and the cap base are both the Legislative Assembly, but membership may be in either House.

### MCQ 29.

What did the Ninety-first Amendment Act, 2003, section 3 insert for States?

A. Articles 164(1A)-(1B): a fifteen-per-cent Assembly-based cap with minimum twelve and a specified defector bar. B. A fixed five-year term for Governors. C. Direct election of Chief Ministers. D. A uniform constitutional Cabinet-rank hierarchy.

**Answer: A.**

**Option A explanation:** The provisions took effect on 1 January 2004 and include the CM in the count.

**Option B explanation:** Article 156 remains unchanged.

**Option C explanation:** Chief Ministers continue to be appointed within parliamentary government.

**Option D explanation:** Ministerial ranks remain conventional/practical.

**Examiner trap 29:** The fifteen-per-cent denominator is total Assembly membership, not both Houses.

### MCQ 30.

The Ninety-fourth Amendment Act, 2006, section 2 changed Article 164 by:

A. Abolishing the Tribal Welfare Minister requirement. B. Substituting Chhattisgarh and Jharkhand for Bihar in the named-State proviso. C. Adding every Fifth Schedule State to the proviso. D. Moving the requirement into the Sixth Schedule.

**Answer: B.**

**Option A explanation:** The constitutional requirement continues.

**Option B explanation:** The current list is Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha.

**Option C explanation:** The rule is not coextensive with Scheduled Areas.

**Option D explanation:** Article 164, not the Sixth Schedule, contains this ministerial proviso.

**Examiner trap 30:** Remember the exact substitution and resulting four-State list.

### MCQ 31.

Under Articles 165 and 177, the Advocate General:

A. Must be a sitting High Court judge. B. May vote in either State House without membership. C. Must qualify for appointment as a High Court judge and may speak/participate without an automatic vote. D. Is appointed by the Chief Justice of the High Court.

**Answer: C.**

**Option A explanation:** Qualification is required; current judicial office is not.

**Option B explanation:** Voting follows membership, not office as Advocate General.

**Option C explanation:** This combines eligibility, function and legislative participation accurately.

**Option D explanation:** The Governor appoints the Advocate General.

**Examiner trap 31:** Participation under Article 177 is not House membership.

### MCQ 32.

Which final combination is constitutionally accurate?

A. The Governor appoints High Court judges and is Chancellor by Article 153. B. Article 234 requires only gubernatorial personal satisfaction. C. University statutes cannot alter a Governor's Chancellor role. D. Articles 233-234 build High Court/SPSC consultation into judicial-service appointments, while any Chancellor role arises only from the relevant State statute.

**Answer: D.**

**Option A explanation:** The President appoints High Court judges; Chancellor status is not inherent.

**Option B explanation:** Shamsher Singh rejects personal satisfaction, and Article 234 names consultations.

**Option C explanation:** State legislation creates and may redesign the statutory office subject to constitutional limits.

**Option D explanation:** This preserves judicial-independence checks and the statutory-role boundary.

**Examiner trap 32:** Do not place a statute-created university office inside the constitutional Governor power list.

## PYQS AND ANSWER PRACTICE

## Audited objective PYQs

### PYQ-P1 - UPSC Prelims 2018, GS-I Q41

**Verified demand:** criminal proceedings against a Governor and protection against diminution of gubernatorial emoluments/allowances.

**Answer withheld pending official UPSC key.**

**Doctrinal solution:** Article 361 bars institution or continuation of criminal proceedings and arrest/imprisonment process during the term. Article 158 protects emoluments and allowances from diminution during the term. The immunity is personal and temporary; governmental action remains reviewable.

### PYQ-P2 - UPSC Prelims 2019, GS-I Q66

**Verified demand:** recommendations concerning the qualities and appointment of an ideal Governor.

**Answer withheld pending official UPSC key.**

**Doctrinal solution:** Citizenship and age thirty-five are constitutional qualifications. Eminence, outsider status, political detachment and consultation with the Chief Minister belong to the Sarkaria reform framework, not binding Article 157 text.

### PYQ-P3 - UPSC Prelims 2025, GS-I Q54

Consider the following statements:

1. The Constitution of India explicitly mentions that in certain spheres the Governor of a State acts in his/her own discretion.
2. The President of India can, of his/her own, reserve a bill passed by a State Legislature for his/her consideration without it being forwarded by the Governor of the State concerned.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

**Official Set-A answer: A.**

**Doctrinal solution:** Article 163 and specially worded provisions recognise bounded discretion, so statement 1 is correct. Article 201 begins only when the Governor reserves the Bill; the President cannot self-reserve it, so statement 2 is incorrect.

### PYQ-P4 - UPSC Prelims 2025, GS-I Q59

With reference to the Indian polity, consider the following statements:

1. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office.
2. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office.
3. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

**Official Set-A answer: D.**

**Doctrinal solution:** Statements 1-2 follow Article 361. Statement 3 follows Article 194. The Governor is a component of the legislature under Article 168 but does not receive Article 194 privilege as a member; the question separately states the members' protection.

## Audited Mains PYQs

### PYQ-M1 - UPSC GS-II 2022, Q12 - direct owner

**Verified demand:** Discuss the Governor's legislative powers and the legality/constitutional implications of re-promulgating ordinances. **15 marks | 250 words**

**Model answer - claim -> named evidence -> analysis -> qualification**

**Claim:** The Governor's legislative powers facilitate State law-making, but responsible government and legislative supremacy prevent their conversion into personal veto or serial executive legislation.

**Named evidence:** Article 168 makes the Governor a component of the legislature. Articles 174-176 cover sessions, messages and special address; Article 171 permits nomination of one-sixth of a Legislative Council; Articles 200-201 govern assent and reservation. Under the 2025 Article 143 opinion, Article 200 has three routes and no deemed assent, though prolonged unexplained inaction can receive limited mandamus.

**Analysis:** Article 213 is the temporary bridge. It requires the relevant House or Houses not to be in session, immediate necessity, State competence, presidential instructions in specified cases, laying and six-week expiry. *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh* made laying mandatory, preserved review and rejected automatic survival of every lapsed ordinance's effects.

**Qualification:** A genuinely new emergency can justify a fresh ordinance; the constitutional vice is repetition designed to avoid legislative scrutiny. The Governor's role is facilitative and advice-based, not an alternative law-making chamber.

### PYQ-M2 - UPSC GS-II 2020, Q3 - supporting federalism application

**Question:** How far have cooperation, competition and confrontation shaped the nature of federation in India? **10 marks | 150 words | Primary owner: Polity 12**

**Model route:** Cooperation appears through fiscal and intergovernmental institutions; competition through State policy innovation; confrontation through assent, Article 356, fiscal and investigative disputes. Articles 155-156 create the Governor's Union link, while *Bommai* and the 2025 assent opinion make conflict reviewable and bounded. Conflict is not inherently anti-federal, but partisan use of constitutional offices destroys bargaining trust.

### PYQ-M3 - UPSC GS-II 2022, Q13 - supporting party-federalism application

**Question:** While national political parties in India favour centralisation, regional parties favour State autonomy. Comment. **15 marks | 250 words | Primary owner: Polity 12**

**Model route:** The proposition captures an incentive, not an invariant ideology. Parties often reverse positions with their location in power. The Governor illustrates structural asymmetry because Union appointment and pleasure tenure intersect with State formation, assent and breakdown. Sarkaria, NCRWC and Punchhi reforms seek office-neutrality whichever party governs the Union.

### PYQ-M4 - UPSC GS-II 2023, Q13 - supporting emergency application

**Verified demand:** Account for legal and political factors behind reduced Article 356 use since the mid-1990s. **15 marks | 250 words | Primary owner: Polity 14**

**Model route:** *S.R. Bommai* made proclamations reviewable and floor tests central; *Rameshwar Prasad* invalidated speculative dissolution. Coalition federalisation, regional parties, public scrutiny and commission norms raised political costs. Article 356 remains available on a report or otherwise, so restraint reflects altered incentives rather than textual repeal.

### PYQ-M5 - UPSC GS-II 2024, Q13 - supporting Centre-State application

**Verified demand:** Explain recent changes in Centre-State relations and measures for trust and stronger federalism. **15 marks | 250 words | Primary owner: Polity 13**

**Model route:** Use GST and intergovernmental coordination for cooperation, fiscal/agency/assent disputes for confrontation, and judicial controls for constitutional bargaining. Match reforms to defects: transparent gubernatorial reasons, prompt floor tests, consultative appointment, predictable transfers and statute-specific university governance. Commission recommendations remain proposals.

## Exactly six original Mains questions with model solutions

### Original Q1 - 10 marks - answer in not more than 150 words

**Question:** "The Governor's discretion is constitutionally necessary but politically dangerous." Examine.

#### Model solution

**Claim:** Article 163 permits discretion only where the Constitution expressly or necessarily requires it; it does not create a rival executive.

**Named evidence:** *Shamsher Singh* makes advice the rule. Legitimate threshold functions include hung-Assembly appointment, an objective floor-test trigger, Article 200 choice under the 2025 opinion, Article 356 reporting and named special responsibilities.

**Analysis:** These functions prevent paralysis where ministerial advice cannot neutrally settle who holds office or where the Constitution assigns scrutiny. Yet Union appointment and pleasure tenure can turn timing into partisan leverage.

**Qualification:** *Bommai*, *Rameshwar Prasad*, *Nabam Rebia* and *Subhash Desai* require objective material, House-centred proof and reviewable purpose. Discretion is legitimate as process guardianship, dangerous as political supervision.

### Original Q2 - 10 marks - answer in not more than 150 words

**Question:** Explain why the Chief Minister and State Council of Ministers constitute the real State executive.

#### Model solution

**Claim:** Formal power is gubernatorial, but political power belongs to the Assembly-responsible ministry.

**Named evidence:** Articles 163-164 place advice, ministerial appointment and collective responsibility around the Chief Minister. Article 167 makes the CM the constitutional information channel; Article 166 merely expresses action in the Governor's name.

**Analysis:** The CM selects and coordinates ministers, controls portfolios, leads the legislative programme and converts majority support into administration. The Council stands or falls together before the Assembly.

**Qualification:** The Governor retains real threshold and scrutiny functions in formation, assent and breakdown. Nevertheless, ordinary policy authority follows democratic responsibility; hence the State executive is formally gubernatorial but substantively ministerial.

### Original Q3 - 15 marks - answer in not more than 250 words

**Question:** "Article 200 creates a constitutional gate, not a gubernatorial pocket veto." Discuss after the 2025 decisions.

#### Model solution

**Claim:** Article 200 requires a constitutional choice and contains no power of indefinite silence.

**Named evidence:** *State of Punjab* linked withholding with return and required action. *State of Tamil Nadu* prescribed timelines and deemed assent to ten Bills. The later five-judge Article 143 opinion states three routes-assent, reserve, or withhold-and-return a non-Money Bill-while mandatory reservation protects a High Court endangered by the Bill.

**Analysis:** The opinion treats choice among the routes as discretionary and bars pre-enactment merits review. It nevertheless permits limited mandamus where inaction is glaring, prolonged, unexplained and indefinite. It rejects rigid court-made timelines and judicially deemed assent because courts cannot substitute themselves for the constitutional decision-maker.

**Qualification:** The advisory opinion expressly disapproved the April judgment's general timeline and deemed-assent reasoning, but did not appellate-set aside its inter partes relief. Therefore, Article 200 is neither a personal veto nor an automatic-assent mechanism: the Governor must decide, while courts police non-performance without choosing the result.

### Original Q4 - 15 marks - answer in not more than 250 words

**Question:** Frame a constitutionally proper response to a hung Assembly and a later claim that the ministry has lost confidence.



### Model solution

**Claim:** The Governor's role is temporary and procedural: enable government formation, then let the Assembly determine political title.

**Named evidence:** Article 164 authorises CM appointment but gives no rigid invitation order. Objective coalition support, pre-poll arrangements and credible letters may guide a provisional invitation. *Bommai* makes the floor the ordinary majority forum. *Shivraj Singh Chouhan* upheld a prompt test where resignations created objective doubt; *Subhash Desai* rejected factional dissent alone.

**Analysis:** An early test minimises private arithmetic and ensures public accountability. If the ministry loses, it should resign; if it refuses after demonstrated loss, dismissal may follow. The Governor should explore a viable alternative before dissolution.

**Qualification:** *Rameshwar Prasad* prohibits pre-emptive dissolution based on anticipated horse-trading. Disqualification, whip and symbol disputes remain with the Speaker, courts and ECI. A caretaker continues essentials with restraint. The stable sequence is objective support -> invitation -> prompt floor test -> alternative government -> dissolution only as last resort.

### Original Q5 - 20 marks - answer in not more than 250 words

**Question:** "The Governor is a federal bridge in constitutional theory but a fault line in political practice." Critically examine and suggest reforms.

### Model solution

**Claim:** The office links Union and State while preserving a formal head for responsible government, but its incentive structure can undermine neutrality.

**Named evidence:** Articles 155-156 place appointment and pleasure at Union level; Articles 164, 200 and 356 engage government formation, State legislation and constitutional breakdown. Hargovind Pant denies that the Governor is a Union employee, while B.P. Singhal bars arbitrary removal.

**Analysis:** A neutral Governor facilitates transitions, obtains constitutional information and warns of breakdown. Friction arises when rival-party governments face delayed Bills, questionable floor tests, speculative dissolution or statutory university disputes. *Bommai*, *Rameshwar Prasad*, *Nabam Rebia*, *Subhash Desai* and the 2025 assent opinion move these conflicts toward objective material, the House and limited review.

**Counter-case:** Appointment from outside the State and national perspective can protect continuity, minorities and constitutional compliance; abolition would not remove political conflict.

**Reforms and qualification:** Sarkaria supports an eminent detached outsider, CM consultation and Article 356 restraint; NCRWC proposes plural selection; Punchhi favours stronger tenure/removal safeguards and clearer crisis rules. Transparent reasons, prompt tests and statute-specific Chancellor design should supplement law. These remain proposals. The objective is accountable neutrality, not a powerless Governor.

### Original Q6 - 20 marks - answer in not more than 250 words

**Question:** Evaluate Article 213 as a balance between executive necessity and legislative supremacy.

### Model solution

**Claim:** Article 213 is a valid emergency bridge whose legitimacy depends on rapid return to representative law-making.

**Named evidence:** The relevant House or Houses must not be in session and immediate action must be necessary. An ordinance has Act-like force within State competence, requires presidential instructions in three specified situations, must be laid and ceases six weeks after the later reassembly unless withdrawn or disapproved earlier.

**Analysis:** The power prevents legal and administrative paralysis between sittings. Its danger is executive avoidance of debate, committee scrutiny and an uncertain majority. *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh*, seven judges by 5:2, made laying mandatory, preserved review of satisfaction and rejected automatic survival of all lapsed effects.

**Qualification:** Courts should test competence, mala fides, relevant material and repetition, not substitute their view of policy urgency. A fresh, genuinely changed emergency may justify fresh action.



**Verdict:** Necessity can authorise temporary law, but only legislative scrutiny can legitimise its continuation. Article 213 balances the two values when the ordinance is exceptional, reasoned, laid promptly and never used as a parallel legislature.